

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                            |                           |                                                                                                                                                                                                                                  |
|---------------------------------------------------|--------------------------------------------|---------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Eric Rigie                       | Team:<br>Squad #01                         | CCRB Case #:<br>201411998 | <input checked="" type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Sunday, 11/23/2014 4:05 AM    | Location of Incident:<br>985 Morris Avenue | 18 Mo. SOL<br>5/23/2016   | Precinct:<br>44                                                                                                                                                                                                                  |
| Date/Time CV Reported<br>Sun, 11/23/2014 12:50 PM | CV Reported At:<br>IAB                     | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Fri, 11/28/2014 12:50 PM                                                                                                                                                                           |

  

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

  

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |
|             |              |

  

| Subject Officer(s) | Shield | TaxID  | Command |
|--------------------|--------|--------|---------|
| 1. POM Howard Roth | 15486  | 949582 | 044 PCT |
| 2. An officer      |        |        |         |

  

| Witness Officer(s)        | Shield No | Tax No | Cmd Name |
|---------------------------|-----------|--------|----------|
| 1. POM Christoph Anderson | 11036     | 952410 | 044 PCT  |
| 2. POM Thomas Ohare       | 30812     | 919498 | 044 PCT  |
| 3. POM Dywayne Harris     | 10473     | 949660 | 044 PCT  |

  

| Officer(s)          | Allegation                                                         | Investigator Recommendation |
|---------------------|--------------------------------------------------------------------|-----------------------------|
| A . POM Howard Roth | Abuse: PO Howard Roth threatened § 87(2)(b) with the use of force. | A . Unsubstantiated         |
| B . An officer      | Force: An officer used physical force against § 87(2)(b)           | B . Officer(s) Unidentified |

### Case Summary

On November 23, 2014, at approximately 4:05 a.m., § 87(2)(b) was at the Bamboo Lounge at 985 Morris Avenue in the Bronx. While at the lounge, numerous officers from multiple commands arrived to clear out the lounge in order to secure it as a crime scene for the purposes of investigating a stabbing incident. These officers initially responded to 1641 Grant Avenue, which is where the stabbing victims were located. On exiting the lounge, § 87(2)(b) told another female to calm down because the officers were “trigger happy.” In response to this comment, PO Howard Roth allegedly replied to § 87(2)(b) “Yes, I will pull out my gun. I will shoot” (**Allegation A**). A few minutes later, § 87(2)(b) walked up behind an unknown male officer to ask if she could leave with her friend. This unknown officer replied, “Get the hell out of here!” and pushed § 87(2)(b) causing her to fall to the ground (**Allegation B**). As a result of this fall, § 87(2)(b) sustained a sprain to her right ankle. § 87(2)(b) was not summonsed or arrested.

### Mediation, Civil and Criminal Histories

- § 87(2)(g)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- A FOIL request confirmed that § 87(2)(b) did not file any notices of claim for this incident (encl. 10E).

### Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (encl. 1B).
- PO Roth has been a member of the NYPD for four years and has had three previous CCRB allegations involving two cases with all prior allegations truncated. § 87(2)(g) (encl. 1A).

### Potential Issues

- § 87(2)(b) said that this incident was witnessed by several of her coworkers, but only provided the first names and cell phone numbers of two. § 87(2)(b) initially agreed to provide additional contact information, but failed to do so (encl. 11C-11F).
- Attempts to contact the Bamboo Lounge to secure video footage were unsuccessful. (encl. 11C-11F).
- § 87(2)(b) said during her interview that she fell to the ground once on her own and did not know whether her injuries were sustained during this fall or when she was pushed to the ground by an officer (encl. 2B).
- The original IAB log named PO Roth as the officer who pushed § 87(2)(b) but § 87(2)(b) described a different officer in a phone statement and her CCRB interview (encl. 1I, 1L and 2B-2C).

### NYPD Documents

- Documentation requested to identify the second subject officer included the UF-49, the detailed EVENT, and the memo books for PO Anderson, PO Roth, and PO O'Hare. However, these documents were focused on the initial crime scene at 1641 Grant Avenue § 87(2)(g)
- § 87(2)(b) was uncooperative in viewing a photo array (encl. 2B-2C, 9B, and 11I).

## **Findings and Recommendations**

### **Officer Identification**

- § 87(2)(b) alleged that she requested PO Roth's name and shield number. PO Roth allowed § 87(2)(b) to read this information off his uniform at the scene (encl. 2B-2C).

### **Allegation A: PO Howard Roth threatened § 87(2)(b) with the use of force.**

PO Roth acknowledged being at 985 Morris Avenue on November 23, 2014, between 3:08 a.m. and 4:13 a.m. for the purpose of clearing out the lounge to secure it as a crime scene (encl. 4F-4G).

§ 87(2)(b) stated that upon exiting the lounge, she told an unknown female that the officers were "trigger happy." PO Roth replied to this comment by allegedly saying, "Yes, I will pull out my gun. I will shoot" (encl. 2B-2C).

PO Roth did not remember any specific interactions he had with civilians during the incident, but said that his role was primarily limited to issuing general orders to the crowd to disperse. PO Roth denied threatening to pull out or shoot his gun and denied hearing any officers make any such threat. PO Roth did not recognize § 87(2)(b) from her photo (encl. 4F-4G). PO O'Hare, PO Roth's partner, confirmed that he did not hear any officers threaten to draw their guns and shoot. He also did not recognize § 87(2)(b) from her photo (encl. 5F).

§ 87(2)(g)

§ 87(2)(b). It is therefore recommended that **Allegation A** be **unsubstantiated**.

### **Allegation B: An officer used physical force against § 87(2)(b)**

§ 87(2)(b) stated that she approached a uniformed officer from behind and asked him if she could leave with her friend. This unidentified officer yelled for § 87(2)(b) to leave and then pushed her in the chest with two hands, causing her to fall to the ground. § 87(2)(b) described this officer as a black, male, 5'6" to 5'7" tall, with a slim build, bald head, older in age, and in uniform (encl. 2B-2C). Witness § 87(2)(b) said in a phone statement that during the incident, he observed § 87(2)(b) on the ground complaining of being pushed by an officer, but he did not see any officers close to § 87(2)(b) (encl. 2G).

PO Harris acknowledged being at 985 Morris Avenue from approximately 3:15 a.m. to 5:50 a.m. However, he said that he was inside the lounge the entire time he was on scene. PO Harris denied pushing any civilians and did not see any other officers push a civilian to the ground. PO Harris did not recognize § 87(2)(b) from her photo (encl. 6E).

PO Anderson, who responded to the crime scene at 1641 Grant Avenue, was not sure which officers went from 1641 Grant Avenue to 985 Morris Avenue. He and his partner, PO Ciaran Tracey, went from 1641 Grant Avenue to § 87(2)(b) with the victims and were never present at 985 Morris Avenue (encl. 3E). PO Roth stated that he and PO O'Hare went from 1641

Grant Avenue with several officers to 985 Morris Avenue. Aside from PO O'Hare, PO Roth was not sure which other officers went to 985 Morris Avenue (encl. 4F-4G). Neither PO Roth nor PO O'Hare saw any officers push any civilians or any civilians on the ground at 985 Morris Avenue. PO O'Hare added that there were numerous unknown officers from unknown commands present at 985 Morris Avenue (encl. 5F).

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as *Officer Unidentified*.

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Team: Pod 1

Investigator: \_\_\_\_\_  
Signature Print Date

Supervisor: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date